

**SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS**

-----X

OSIRIS O. GOMEZ, as Administrator of the Estate of
ERICKSON GOMEZ BRITO and OSIRIS O. GOMEZ,
individually,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JENNIFER
GARCIA and POLICE OFFICER ANDRIS BISOGNO,

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER JENNIFER GARCIA
c/o New York City Police Department- 73rd
Precinct
1470 East New York Avenue
Brooklyn, New York 11212

POLICE OFFICER ANDRIS BISOGNO
c/o New York City Police Department- 73rd
Precinct
1470 East New York Avenue
Brooklyn, New York 11212

Dated: Brooklyn, New York
July 21, 2017

Index #

Date of filing:

Plaintiff designates Kings
County as the place of trial

Basis of the venue is Locus
of Occurrence

SUMMONS

Plaintiff resides at
563 Mother Gaston Boulevard
Apt. # 1A
Brooklyn, New York 11212

County of Kings

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

**SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS**

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OSIRIS O. GOMEZ, as Administrator of the Estate of
ERICKSON GOMEZ BRITO and OSIRIS O. GOMEZ,
individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JENNIFER
GARCIA and POLICE OFFICER ANDRIS BISOGNO,

Defendants.

-----X

Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

THE PARTIES AND FACTUAL ALLEGATIONS

1. That at the time of his death on November 19, 2016, and at all times hereinafter mentioned, plaintiff decedent, ERICKSON GOMEZ BRITO, was a resident of the County of Kings, City and State of New York.
2. The plaintiff, OSIRIS O. GOMEZ, was the Father of the decedent, ERICKSON GOMEZ BRITO, and a resident of the County of Kings, City and State of New York.
3. That prior to the commencement of this action, OSIRIS O., was appointed administrator of the Estate of GOMEZ ERICKSON GOMEZ BRITO, decedent, by Order of the Honorable Margarita A. Lopez Torres, a Surrogate of the County of Kings dated February 16, 2017.
4. The cause of action herein alleged arose in the County of Kings, City and State of New York.
5. That the defendant, THE CITY OF NEW YORK, at all times hereinafter mentioned was a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

6. That the defendant THE CITY OF NEW YORK maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

7. That at all times hereinafter mentioned, the defendant, THE NEW YORK CITY HOUSING AUTHORITY, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

8. That prior hereto on March 16, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

9. That on May 10, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing of the plaintiff, OSIRIS O. GOMEZ, was held.

10. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER JENNIFER GARCIA , as an agent, servant and/or employee.

11. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER ANDRIS BISOGNO, as an agent, servant and/or employee.

12. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, decedent, ERICKSON GOMEZ BRITO, was lawfully present in the premises known as 362 Sutter Avenue, a building within the Van Dyke Houses, more specifically the 9th floor hallway thereat, County of Kings, City and State of New York.

13. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, were within the premises known as 362 Sutter Avenue, County of Kings, City and State of New York.

14. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, were within the premises known as 362 Sutter Avenue, County of Kings, City and State of New York.

15. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, the stairwell that defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, on duty and on patrol at the aforesaid premises.

16. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, while acting as an agent, servant and/or employee of the defendant, THE CITY OF NEW YORK, approached the plaintiff, decedent, ERICKSON GOMEZ BRITO, at the premises located at 362 Sutter Avenue, County of Kings, City and State of New York.

17. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, while acting as an agent, servant and/or employee of the defendant, THE CITY OF NEW YORK, fired/discharged their weapons striking and killing the plaintiff, decedent, ERICKSON GOMEZ BRITO.

18. That the shooting of the decedent plaintiff, ERICKSON GOMEZ BRITO, was without reason or provocation

19. That the shooting of the decedent plaintiff, ERICKSON GOMEZ BRITO, was without probable cause.

20. The aforementioned shooting was performed knowingly, intentionally and willfully.

21. The aforementioned shooting was performed negligently and recklessly.

22. The aforementioned shooting was performed without reason or provocation.

23. The aforementioned shooting resulted in the death of the decedent plaintiff, ERICKSON GOMEZ BRITO.

24. At no time during the events described above or as the events occurred did the defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, have a probable cause for the discharge of their firearm.

25. The actions of defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, are liable under the doctrine of respondent superior.

26. The actions of the defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, in a negligent, careless and reckless manner so as to result in the death of the decedent plaintiff, ERICKSON GOMEZ BRITO.

27. After the discharging of their fire weapons, the defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, failed to rendered or request timely medical assistance to the decedent plaintiff, ERICKSON GOMEZ BRITO.

28. By reason of said shooting decedent plaintiff, ERICKSON GOMEZ BRITO, was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror as a result of the negligence of the defendants herein.

**AS AND FOR A FIRST CAUSE OF ACTION FOR WRONGFUL DEATH
ON BEHALF OF OSIRIS O. GOMEZ, AS ADMINISTRATOR OF THE
ESTATE OF ERICKSON GOMEZ BRITO**

29. The plaintiffs repeat and reallege each and every allegation set forth above numbered "1" through "28" inclusive with the same force and effect as if more fully set forth at length herein.

30. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, ERICKSON GOMEZ BRITO, was lawfully at the

aforesaid location when he was caused to be shot resulting in his death, by defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, while acting within the scope of their employment with the defendants, THE CITY OF NEW YORK.

31. That the shooting of the decedent plaintiff, ERICKSON GOMEZ BRITO, was without probable cause.

32. The aforementioned shooting was performed knowingly, intentionally and willfully.

33. The aforementioned shooting was performed negligently and recklessly.

34. The negligence of all defendants contributed to the shooting of decedent plaintiff, ERICKSON GOMEZ BRITO.

35. The recklessness of defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, contributed to the shooting of decedent plaintiff, ERICKSON GOMEZ BRITO.

36. The aforementioned shooting was performed without reason or provocation.

37. That defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, failed to rendered or request timely medical assistance to the decedent plaintiff, ERICKSON GOMEZ BRITO.

38. The aforementioned shooting resulted in the wrongful death of the decedent plaintiff, ERICKSON GOMEZ BRITO.

39. That at all times hereinafter mentioned, defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, engaged in the actions and conduct alleged herein in their official capacity as New York City Police Officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

40. By reason of the foregoing, the plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT AND
BATTERY ON BEHALF OF OSIRIS O. GOMEZ, AS ADMINISTRATOR
OF THE ESTATE OF ERICKSON GOMEZ BRITO**

41. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "40" herein, as though more fully set forth herein at length.

42. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, ERICKSON GOMEZ BRITO, was lawfully present at the premises known as 362 Sutter Avenue, a building within the Van Dyke Houses, more specifically the 9th floor hallway thereat, County of Kings, City and State of New York.

43. That on November 19, 2016, and at all times hereinafter mentioned and upon information and belief, plaintiff, decedent, ERICKSON GOMEZ BRITO, was shot without reason or provocation, resulting in death by POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, while acting as agents, servants and/or employees of the defendant, THE CITY OF NEW YORK.

44. The aforementioned shooting was performed knowingly, intentionally and wilfully.

45. The aforementioned shooting was performed recklessly and negligently.

46. The defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, involved in this incident who committed the shooting of the decedent plaintiff, ERICKSON GOMEZ BRITO, was acting within his scope of employment with the defendant, THE CITY OF NEW YORK.

47. That the shooting of the decedent plaintiff, ERICKSON GOMEZ BRITO, was without probable cause.

48. By reason of said assault and battery, the decedent plaintiff, ERICKSON GOMEZ BRITO, was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror, conscious

pain and suffering.

49. By reason of the foregoing, the plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENCE
ON BEHALF OF OSIRIS O. GOMEZ, AS ADMINISTRATOR
OF THE ESTATE OF ERICKSON GOMEZ BRITO**

50. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "49" herein, as though more fully set forth herein at length.

51. That said incident and the injuries resulting therefrom were caused solely by the negligence, carelessness, and recklessness of defendant, THE CITY OF NEW YORK, through its agents, servants, employees and the police officers involved, including but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, both directly and vicariously.

52. Such negligence consisted of negligence in training, hiring, supervision and retention of the police officers involved in this incident; in failing to properly train police officers in the use and operation of a gun; in failing to observe the existing police department protocols for police officers designed to govern the use of deadly lethal force and the use and discharge of a weapon causing serious injuries both physical and emotional resulting in death, conscious pain and suffering, pre impact terror arising and resulting out of a shooting of the plaintiff and further; in failing to use care in the performance of police duties as reasonably prudent and careful police officers would have used in similar circumstances; in hiring and retaining persons who were unfit to serve as police officers; failing to properly investigate their background; in failing to train and

instruct police officers, especially regarding the use and abuse of power while in the field; in failing to give police officers proper instructions on the use of force, use of firearms including proper discharge of said weapons, more specifically with regard to their training as to the use of firearms in public; improperly supervised police officers in the field; in failing to properly render timely medical aid; in failing to timely request medical aid so as to put the decedent plaintiff, ERICKSON GOMEZ BRITO, at risk which allowed the shooting of said decedent plaintiff which resulted in his death.

53. The defendant, THE CITY OF NEW YORK NEW YORK , through its agents, servants, employees and the police officers involved, including but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, were negligent, reckless and careless in shooting the decedent plaintiff, ERICKSON GOMEZ BRITO.

54. As the result of said negligence, the decedent plaintiff, ERICKSON GOMEZ BRITO, was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre- death pain and suffering; emotional and psychological distress and horror.

55. By reason of the foregoing, the plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING
AND RETENTION ON BEHALF OF OSIRIS O. GOMEZ, AS ADMINISTRATOR
OF THE ESTATE OF ERICKSON GOMEZ BRITO**

56. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "55" herein, as though more fully set forth herein at length.

57. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and

employees and were negligent in the hiring, training and retention of POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, who assaulted, battered and improperly fired their weapon causing a bullet to strike the decedent plaintiff, ERICKSON GOMEZ BRITO, and who negligently failed to render and/or request timely medical assistance.

58. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, who failed to act as reasonably prudent police officers would have under the circumstances after the shooting and who negligently failed to render or request timely medical assistance.

59. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, and continued to employ them and allowed them to be in contact with the public at large.

60. By reason of the foregoing, the plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION
ON BEHALF OF OSIRIS O. GOMEZ, AS ADMINISTRATOR
OF THE ESTATE OF ERICKSON GOMEZ BRITO**

61. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "60" herein, as though more fully set forth herein at length.

62. That at all times hereinafter mentioned, the defendant, POLICE OFFICER JENNIFER GARCIA, engaged in the actions and conduct alleged herein in his official capacity as

a New York City police officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

63. That at all times hereinafter mentioned, the defendant, POLICE OFFICER ANDRIS BISOGNO, engaged in the actions and conduct alleged herein in his official capacity as a New York City police officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

64. That such actions served to deprive the decedent plaintiff, ERICKSON GOMEZ BRITO, of the rights and privileges of the **United States Constitution, the Fourth (4th) and Fourteenth (14th) Amendment of the U.S. Constitution and Sec. 1983 of 42 U.S.C.** In particular, he was deprived of his right to due process of law, of his right to happiness, to liberty, to be free from physical injury and the unwarranted use of physical force, and ultimately to the most fundamental right -his right to life.

65. That the defendant, THE CITY OF NEW YORK, had as a matter of policy and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct it's police officers, including the officers at the scene in this case, regarding the protection of the constitutional rights of citizens.

66. Such policy, practice and deliberate indifference has been described in excruciating detail in the various investigations and commissions into the Police Department. It has served to encourage and sanction the police officers' unlawful conduct described above, and was the approximate cause of the violations of the decedent plaintiff, ERICKSON GOMEZ BRITO's, civil rights on the day of November 19, 2016.

67. By reason of the foregoing, the plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, demands judgment for civil rights violation against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES AS TO
DEFENDANTS, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER
ANDRIS BISOGNO, ON BEHALF OF OSIRIS O. GOMEZ, AS ADMINISTRATOR
OF THE ESTATE OF ERICKSON GOMEZ BRITO**

68. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "67" herein, as though more fully set forth herein at length.

69. The actions of the defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, herein-above alleged, were malicious, willful and grossly negligent.

70. The defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, committed the unlawful and negligent acts herein-above alleged, in that they caused their weapon to discharge causing the death of ERICKSON GOMEZ BRITO.

71. The defendants, POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, at the time of the shooting, were performing a vertical patrol despite directives not to do so.

72. By reason of the foregoing, the plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR LOSS OF
SERVICES ON BEHALF OF OSIRIS O. GOMEZ,
AS ADMINISTRATOR OF THE ESTATE OF ERICKSON GOMEZ BRITO**

73. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "72" herein, as though more fully set forth herein at length.

74. That at all times hereinafter mentioned, the plaintiff, OSIRIS O. GOMEZ, was the Father of the decedent plaintiff, ERICKSON GOMEZ BRITO, and as such plaintiff, OSIRIS O. GOMEZ, was entitled to the society and services of the decedent plaintiff, ERICKSON GOMEZ BRITO.

75. By reason of the aforementioned negligence of the defendants, the plaintiff, OSIRIS O. GOMEZ, was deprived of the society and services of the decedent plaintiff, ERICKSON GOMEZ BRITO, and shall forever be deprived of said society and services.

76. As a result of the aforementioned negligence, the plaintiff, OSIRIS O. GOMEZ, has expended diverse sums of money in payment of the expenses incurred for the decedent plaintiff, ERICKSON GOMEZ BRITO.

77. By reason of the foregoing, the plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, demands judgment for loss of services against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JENNIFER GARCIA and POLICE OFFICER ANDRIS BISOGNO, whose names are not yet known or identified, in a sum exceeding the jurisdictional limits of all the lower courts.

WHEREFORE, plaintiff, OSIRIS O. GOMEZ, as Administrator of the ERICKSON GOMEZ BRITO, for **wrongful death** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **First Cause** of Action; plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, for **assault and battery** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Second Cause** of Action; plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, for **negligence** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Third Cause** of Action; plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, for **negligent hiring and retention** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth**

Cause of Action; plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, for **civil rights violation** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth Cause** of Action; plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, for **punitive damages** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth Cause** of Action; plaintiff, OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, deceased, for **loss of services**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh Cause** of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
July 31, 2017

Yours, etc.,

SCOTT E. RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 16EB11-19

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

OSIRIS O. GOMEZ, as Administrator of the Estate of ERICKSON GOMEZ BRITO, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

Osiris Gomez
OSIRIS O. GOMEZ

Sworn to before me this 24
day of August, 2017

Yang Fung Leong
NOTARY PUBLIC

YANG FUNG LEONG
Notary Public, State of New York
No. 01LE6136366
Qualified in Kings County
Commission Expires November 7, 2017